

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

CAMPBELL, DAVID ALEXANDER

Plaintiff,

-against-

**THE CITY OF NEW YORK, P.O. ADAM
R. KEEGAN, P.O. CHRISTOPHER
MYERS, SERGEANT GEORGE
KALOGEROPOULOS, SERGEANT
LOUIS RIVERA, P.O. JOSEPH
ALIBERTI, and CAPTAIN BRETT D.
GRANOWETTER,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates NEW YORK
County as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
January 19, 2021

Rickner PLLC

By:



Rob Rickner

14 Wall Street Suite 1603
New York, New York 10005
Phone: (212) 300-6506

Fax: (888) 390-5401

Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

P.O. ADAM R. KEEGAN,
P.O. CHRISTOPHER MYERS,
SERGEANT GEORGE KALOGEROPOULOS,
SERGEANT LOUIS RIVERA,
P.O. JOSEPH ALIBERTI, and
CAPTAIN BRETT D. GRANOWETTER
New York City Police Department
1 Police Plaza
New York, New York 10005

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VERIFIED COMPLAINT

Plaintiff David Alex Campbell, by his attorneys, Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department ("NYPD"), who violated Plaintiff's rights under the Constitution of the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 for violations of Plaintiff's rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Venue is properly laid in the Supreme Court of the State of New York, County of New York, because the Plaintiff's claims arose in the County of New York.

5. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

6. Plaintiff is, and was at all times relevant to this action, a resident of Kings County in the State of New York.

7. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

8. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

9. Defendant Police Officer Adam R. Keegan (Shield No. 03588, Tax ID No. 959722) (hereinafter "Keegan") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

10. Officer Keegan is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

11. Officer Keegan is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

12. Defendant Police Officer Christopher Myers (Shield No. 4412, Tax ID No. 959817) (hereinafter "Myers") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

13. Officer Myers is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

14. Officer Myers is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

15. Defendant Sergeant George Kalogeropoulos (Shield No. 05279, Tax ID No. 942902) (hereinafter "Kalogeropoulos") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

16. Sgt. Kalogeropoulos is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

17. Sgt. Kalogeropoulos is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

18. Defendant Sergeant Louis Rivera (Shield No. Unknown, Tax ID No. 942440) (hereinafter "Rivera") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

19. Sgt. Rivera is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

20. Sgt. Rivera is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

21. Defendant Police Officer Joseph Aliberti (Shield No. 13609, Tax ID No. 956378) (hereinafter "Aliberti") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

22. Officer Aliberti is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

23. Officer Aliberti is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

24. Defendant Captain Brett D. Granowetter (Shield No. Unknown, Tax ID No. 932642) (hereinafter "Granowetter") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

25. Cpt. Granowetter is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

26. Cpt. Granowetter is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

27. Collectively, Defendants Keegan, Myers, Kalogeropoulos, Rivera, Aliberti, and Granowetter are referred to as the “Individual Defendants.”

28. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

29. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

THE VIOLATION OF PLAINTIFF’S CIVIL RIGHTS

30. On January 20, 2018, at approximately 10:20 p.m., Plaintiff was in the vicinity of 11 Avenue and West 50th Street in Manhattan, when he was caught up in a street brawl.

31. The Individual Defendants used excessive force in arresting Plaintiff, attacking him from behind, without announcing their presence, causing severe physical injury, emotional distress, pain, and suffering.

32. The Individual Defendants then fabricated evidence to justify this use of this violent and excessive force by lying in the arrest report, the criminal complaint, and in required internal reporting about the level of force used and the reasons necessitating it.

33. The false evidence and statements were used to prosecute Plaintiff and were “corrected” by the prosecutor only after surveillance video conclusively undermined the Individual Defendants’ false claims.

THE INJURIES TO PLAINTIFF

34. This action seeks damages on behalf of Plaintiff for the extraordinary physical and emotional pain, suffering, and injuries to his person that Plaintiff endured as a consequence of the Individual Defendants decidedly wrongful and unconstitutional actions.

35. These damages include diverse general and special damages.

36. As a result of Defendants’ actions, Plaintiff experienced personal and emotional injuries, pain and suffering, fear, loss of liberty, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation.

37. The Individual Defendants’ actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff’s civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York is liable for damages caused by its policies and practices.

38. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CLAIM FOR RELIEF: EXCESSIVE FORCE UNDER 42 U.S.C. § 1983 AGAINST THE INDIVIDUAL DEFENDANTS

39. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

40. The Individual Defendants engaged in the use of force that was excessive, malicious, gratuitous, and with the intention of inflicting physical and emotional harm to plaintiff.

41. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived civil rights guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

42. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

43. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
DUE PROCESS VIOLATIONS UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

44. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

45. The Individual Defendants provided false evidence and statements to the prosecution, defense counsel, and court, including false allegations of Plaintiff's conduct necessitating the use of Level 3 force, which the NYPD defines as "the use of physical force that is readily capable of causing death or serious physical injury."

46. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of his due process rights guaranteed under the Fourteenth Amendment to the United States Constitution to be free from prosecution based on false statements and fabricated evidence, The Individual Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

47. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

48. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**THIRD CLAIM FOR RELIEF:
MONELL CLAIMS AGAINST THE CITY OF NEW YORK**

49. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

50. The City of New York is liable for the conduct of the Individual Defendants under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978), because the driving force behind these constitutional violations were the *de facto* and explicit policies and practices of the NYPD and the City of New York.

51. As a result, the City of New York is liable for any damages caused, except for punitive damages.

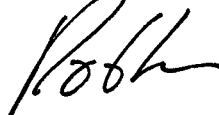
WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
January 19, 2021

Rickner PLLC

By:



Rob Rickner

14 Wall Street Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

I, Rob Rickner, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1) I am the attorney of record for the Plaintiff.

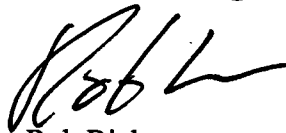
2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.

3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
January 19, 2021

Rickner PLLC

By:



Rob Rickner

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New York, New York 10005
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